

Executive Engineer, Electricity v. Mahan Pratap Singh

High Court of Judicature at Allahabad · Single Judge · 26 April 2023 · Writ-C No. 13942 of 2023; Civil Misc. Correction Application No. 2 of 2020 · **Notice issued; writ listed; respondent-number correction allowed**

HEADNOTE

Writ-C No. 13942 of 2023 was taken up at the notice stage. The Executive Engineer, Electricity, and two others assailed a Permanent Lok Adalat order of 3 February 2021 as passed without considering section 56(2) of the Electricity Act, 2003 and clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court held that the matter requires consideration, issued notice, called for a counter-affidavit within six weeks and a rejoinder within two weeks, and directed that the writ be listed thereafter. On 3 May 2023 a correction application was allowed, substituting stated respondent numbers in the 26 April 2023 order. Section 56(2) and clause 6.5 were not construed.

FACTUAL SUMMARY

The Executive Engineer, Electricity, and two others petitioned the Allahabad High Court in Writ-C No. 13942 of 2023 against Mahan Pratap Singh and another. They challenged a Permanent Lok Adalat order of 3 February 2021, telling the Court that the Lok Adalat had passed it without considering section 56(2) of the Electricity Act, 2003 or clause 6.5 of the U.P. Electricity Supply Code, 2005. The extract is the notice stage of that writ, with a later application to correct which respondent was to be served.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

Notice on challenge to a Permanent Lok Adalat order

HOLDING

The Court recorded the licensees' submission that the Permanent Lok Adalat order dated 3 February 2021 was passed without considering section 56(2) of the Electricity Act, 2003 and clause 6.5 of the U.P. Electricity Supply Code, 2005, and held only that the matter requires consideration. It issued notice, directed a counter-affidavit within six weeks and a rejoinder within two weeks thereafter, and ordered the writ to be listed thereafter. On 3 May 2023 it allowed Civil Misc. Correction Application No. 2 of 2020 and corrected the 26 April 2023 order by reading specified references to respondent no. 2 as respondent no. 1, and one reference to respondent no. 1 as respondent no. 2. No view was expressed on section 56(2) or clause 6.5. ¶ 1-2

PRINCIPLE TAGS

procedural-listing-no-construction The writ was only put down for consideration. Notice issued, affidavits were timetabled, and a later order corrected the respondent numbers. The Court did not construe section 56(2) or clause 6.5. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PERMANENT LOK ADALAT ORDER DATED 3 FEBRUARY 2021 IS LIABLE TO BE INTERFERED WITH FOR NON-CONSIDERATION OF SECTION 56(2) OF THE ELECTRICITY ACT, 2003 AND CLAUSE 6.5 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005.

Notice was issued and affidavits were called for. The writ was directed to be listed thereafter. ¶ 1

